

MEMORANDUM OF UNDERSTANDING
EPAM UpSkill - 2023

This Memorandum of Understanding ("MOU") is entered into by and between MLR Institute of Technology, herein after referred as "**Academic Institute**" and EPAM Systems India Private Limited, Salarpuria Sattva Knowledge City 10th, 11th, 12th Floors, Unit 2&3, plot No. 2, phase 1, Survey No. 83/1, Raidurg Village, Serilingampally Mandal, Ranga Reddy District, Hyderabad, referred as "**EPAM**", for the purpose of setting forth their understanding as to the terms under which they would contemplate pursuing a mutual relationship for jointly carrying out the specific business activities described herein. Academic Institute and EPAM Systems may be jointly referred to herein as the "**Parties**" and each of them, a "**Party**".

This MOU sets forth a summary of the essential terms of the contemplated business relationship but is not exhaustive of all the terms the Parties will require in the final binding agreements between them. It is the Parties' intent that this MOU provides an outline for the preparation of the definitive documentation between the Parties as to the subject matter hereof (the "**Definitive Documents**").

The Parties involved in covenant are to be obliged in consideration of the foregoing recitals.

1. Objective:

It's agreed to have the UpSkill program to meet the following objectives.

- To meet the increase in demand for Quality IT Engineers every year
- To bridge the gap between Industry and Academics
- To quickly bring the curriculum and students on par with the latest Industrial standards
- EPAM may hire such students through an assessment, once reached to that Industrial standard but no commitment on hiring from EPAM.

2. Duration of MOU:

This MOU shall be operational upon signing and will have an initial duration of 5-6 months from 1st March 2023 to 31st August 2023..

3. EPAM Offering:

Once MOU is signed, EPAM runs UpSkill program at Academic Institute up to 5 different Practice areas including – Java, Front-end, Automation Testing using Java/Selenium, .Net and Cloud & DevOps. As a part of running the UpSkill program, EPAM does the following:

- For each of the nominated Practices, provides free training to nominated students of the Academic Institute for the Period of 5-6 Months. Number of Practices that EPAM trains will depend on the Practice nominations made by the Academic Institute at the time of signing or extending the MOU.
- Training is provided virtually up to 20 hours per month
- In addition to above training, up to 20 hours per month, mentoring is provided in-person at college by 2-3 production experts from a program, preferably on Saturday's.
- Allows the Academic Institutes to nominate not more than 50 students per practice to get registered with EPAM for subsequent trainings and mentor support.
- Through an assessment test, certifications are issued after successful completion of the assessment post training.

Expectations from the Academic Institute:

Once MOU is signed, the following are expected from the Academic Institute, failing which may lead to the termination of the agreement.

- Nominate no more than 50 students per practice with EPAM, who will later obtain training and mentoring from EPAM production experts.
- Provide Food, Transportation, and any other logistics for EPAM mentors visiting college during the entire training period.
- The Academic Institute should ensure that nominated students have 100% attendance and any challenge related to students should be addressed immediately.
- For smooth operation of UpSkill program, appoint POC who will take care of anticipated challenges.

4. Faculty Nomination:

EPAM expects to have one faculty, nominated by the Academic Institute for the trainings of each Practice at respective college to play a technical coordinator role between students and EPAM.

- If the nominated faculty holds a bachelor's degree, should have at least 3 years of teaching experience
- If the nominated faculty holds a master's degree, should have at least 2 years of teaching experience
- Should be able to code comfortably using one of the Programming Languages from Java, Python and .Net. Please note that the faculties that can code only using C or C++, are NOT eligible to get nominated
- Should be enthusiastic to learn with active participation during the trainings

5. Successful Training Completion Criteria for the nominated Students:

The following criteria determines "Successful Completion" of the training given to the nominated students in different Practices.

- 100% of Attendance
- On-time completion of assignments with 80% or above marks including in final assessment. Evaluation reports will be shared with respective academic institutes.
- Active participation in the training program with learning enthusiasm.

6. Eligibility for the Student Registration:

EPAM expects to have the following qualifications for the students who are nominated by the Academic Institute for the trainings provided by EPAM remotely and in-person.

Students studying in the Pre-Final year of graduation (2024 Graduates) are eligible for the nomination.

- Branch-wise Nomination with 70% throughout academic score:
 - For Java, DevOps, Front-End, Dotnet technologies – B.Tech/B.E Circuit Branches;
 - For Test Automation – B.Tech/B.E All Branches & MCA.

7. Intellectual Property:

All intellectual property rights, title and interest in the materials, information, assets, or systems developed during the training of the nominated faculty members at EPAM shall remain solely vested with the EPAM. All intellectual property, including copyrights, patents, patent application, trademarks and other intellectual property shall remain the property of the originating party or its licensors. Each party shall retain all rights, title and interest in its intellectual property and neither party grants the other party any rights to use its intellectual property unless and until otherwise provided in a written agreement signed by the Parties. Each party may, at any time and in its sole discretion, revoke any rights granted to the other Party to use its intellectual property (including any logos and/or trademarks).

8. Confidentiality & Security:

Each party agrees that it shall not, at any time, after executing the activities of this MOU, disclose any information in relation to these activities or the affairs of business or method of carrying on the business of the other without consent of both parties. The parties agree that the NDA appended to this MOU shall apply.

9. Force Majeure:

Neither parties shall be liable for failure to perform their respective obligations if such failure is as a result of Acts of God (including fire, flood, earthquake, storm, hurricane or other natural disaster), war, invasion, act of foreign enemies, hostilities (regardless of whether war is declared), acts of any Governmental Authority after the date of this Agreement, strikes and other labor difficulties and other events or circumstances beyond reasonable control.

10. Implementation of MOU:

- (a) Except as otherwise agreed in writing by the parties, each party shall pay and assume entire responsibility for their respective costs and expenditures whatsoever incurred in connection with their activities under this MOU.
- (b) Except for claims for personal injury or death or any other claims that cannot be limited by applicable law, a Party's (or their affiliates) aggregate liability for all claims arising under this MOU or in relation to the Services shall be limited to 800,000 INR. Subject to the foregoing, neither Party shall not be liable to the other party or its affiliates (whether in contract, tort including negligence or otherwise) for any loss or profit, loss of revenue, loss of data, loss of goodwill or for any special, indirect or consequential loss or damage suffered by any other party.
- (c) The Parties have no intention of forming any partnership, agency or authorized representative relationship among them and no such relationships are to be formed by virtue of this MOU. None of the Parties shall enter any contract or commitment on behalf of the other Party(ies).
- (d) Each Party shall be responsible for its own acts and omissions in connection with this MOU and its implementation.

11. Legal Effect:

Except for the provisions of clauses 7, 8, 9, 10, 11 and 13, this MOU is not legally binding but serves only as an expression of the basic principles for the planning and implementation of relationship between the parties and does not itself otherwise constitute a legal agreement and shall not otherwise create any legal obligations rights or liabilities for either party, including the

obligation to continue negotiating in good faith. This MOU sets out the entire agreement of the parties and no further obligations, rights or liabilities shall be binding on either party unless expressed in a formal written agreement signed by both parties. Additions to this MOU shall only be valid if made in writing.

12. Addendum:

Please refer to the addendum for the exact dates of Training and tentative dates of assessment tests conducted for the students.

Now, Therefore, in consideration of the aforesaid recitals, the mutual covenants and agreements herein set forth and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties hereto, intending to be bound legally and signed in this agreement on the day date, month and the year mentioned hereto before.

EPAM SYSTEMS INDIA PRIVATE LIMITED

By: _____

Name:

Title:

MLR INSTITUTE OF TECHNOLOGY

By:  _____

Name: Dr. K. Srinivas Rao PRINCIPAL

Title: Principal **MLR Institute of Technology**
Laxman Reddy Avenue, Dundigal
Quthbullapur, Hyderabad-43.
TELANGANA, INDIA.